

25PSCV03512 25PSCV03512

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-31

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Case Number: 25PSCV03512 Hearing Date: August 31, 2026 Dept: G

Plaintiff

Yolanda Ricks's Motion to Set Aside and Vacate Dismissal without Prejudice of
Defendant City of Pomona

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

Yolanda Ricks's Motion to Set Aside and Vacate Dismissal without Prejudice of
Defendant City of Pomona is DENIED.

BACKGROUND

This

is a premises liability action against public entities. On October 11, 2024, plaintiff Yolanda Ricks (Ricks) allegedly tripped and fell over train tracks, sustaining injuries.

On

September 29, 2026, Ricks filed the Complaint, alleging a sole cause of action for premises liability.

On

November 5, 2025, Ricks dismissed defendants State of California and California Department of Transportation. On

November 20, 2025, Ricks dismissed defendant County of Los Angeles. On December 5, 2025, Ricks dismissed

defendant City of Pomona (the City). On

February 2, 2026, Ricks named defendant Metro Gold Line Foothill Extension Construction Authority as a Doe defendant.

On February 3, 2026, Ricks dismissed defendant Southern California Regional Rail Authority (Metrolink).

On

July 30, 2026, Ricks filed this motion to vacate dismissal, which is unopposed.

The

motion is set for hearing on August 31, 2026.

ANALYSIS

Ricks

moves to vacate the City's dismissal based on attorney error. For the following reasons, the motion is DENIED.

Legal

Standard

The

court must vacate a judgment or dismissal (1) if the motion to vacate was filed within six months and (2) if the judgment or dismissal was the result of the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) The attorney must include a sworn affidavit

attesting to their mistake, and the court must direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel and parties. (Ibid.) To obtain relief under the mandatory

provision, "counsel need not show that his or her mistake, inadvertence, surprise or neglect was excusable. No

reason need be given for the existence of one of these circumstances. Attestation that one of these reasons existed is sufficient to obtain relief unless the trial court finds that the dismissal did not occur because of these reasons."

(Graham v. Beers (1994) 30 Cal.App.4th 1656, 1660.) "The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief [under Section 473] made after that period has elapsed." (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42, emphasis added.)

Discussion

Here,

the court dismissed the City on December 5, 2025 based on Ricks's request. (See 12/5/2025 Request for Dismissal, p. 1.) Ricks filed this motion on July 30, 2026,

more than six (6) months after the dismissal.

(See Mot., p. 1.)

Since Ricks failed to file the motion before the six-month deadline, the

court lacks jurisdiction to vacate the dismissal based on attorney error under Section

473, subdivision (b). (See Manson,

Iver & York, supra, 176 Cal.App.4th at 42.)

Therefore,

the motion to vacate dismissal is DENIED.

CONCLUSION

For

these reasons, the motion to set aside and vacate dismissal is DENIED.